



Stephen Cooke <stephencooke.c@gmail.com>

FW: Urgent - Cooke & Cooke

5 messages

Matthew Shepherd <mshepherd@ramsdenlaw.com.au>

Tue, Jul 30, 2024 at 8:00 PM

To: "Mr Stephen Christopher Cooke (Client)" <stephencooke.c@gmail.com>

Dear Stephen

Do not let this distract you from making your own good decisions about offers and settlement. In that regard, see my email of a few minutes ago.

Regards,

Matthew Shepherd
Acc. Spec. (Family Law) NSW

D: (02) 8123 1229

E: mshepherd@ramsdenlaw.com.au<mailto:>

[cid:image002.png@01DAE330.7A734140]

[cid:image003.png@01DAE330.7A734140]

T: 1300 749 709 | W: ramsdenfamilylaw.com.au

A: Level 3, 1 Castlereagh Street, Sydney NSW 2000

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[cid:image004.png@01DAE330.7A734140]<<https://calendly.com/mshepherd-iby>>From: Olivia Shedden <oshedden@delaneyroberts.com.au>

Sent: Friday, July 26, 2024 2:57 PM

To: Matthew Shepherd <mshepherd@ramsdenlaw.com.au>Cc: Anna Roberts <aroberts@delaneyroberts.com.au>; Thiala Beltrao <tbeltrao@delaneyroberts.com.au>

Subject: Urgent - Cooke & Cooke

Dear Colleagues,

Please see attached letter and enclosures referred to therein.

Yours faithfully

OLIVIA SHEDDEN

Solicitor

BBus, LLB (Hons), DipLegPrac

[Text Description automatically generated]

T 02 4952 3901

E oshedden@delaneyroberts.com.au<mailto:oshedden@delaneyroberts.com.au>

274 Brunker Road, Adamstown NSW 2289

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[www.delaneyrobertsfamilylawyers.com.au](http://delaneyrobertsfamilylawyers.com.au)<<http://delaneyrobertsfamilylawyers.com.au>>

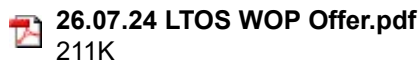
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7 attachments



Stephen Cooke <stephencooke.c@gmail.com>
To: Matthew Shepherd <mshepherd@ramsdenslaw.com.au>

Wed, Jul 31, 2024 at 2:39 AM

Thank you Matthew,

I am troubled by Heather's recent letter, which seems to place blame on me for the escalating legal costs. My actions have been solely reactive and appropriate in response to Heather's conduct, including:

a) For 6 months I have been under persistent pressure to agree to a final property settlement despite inadequate and delayed financial disclosures. My efforts to move forward in the absence of crucial information have led to significant costs, such as the need for a costly subpoena to Westpac. Heather's withholding of full financial details regarding the condo has further complicated matters and necessitated a change in legal representation and the involvement of a forensic accountant. Even then, essential financial information was only provided shortly before mediation.

I am not a risk averse person.

b) From the beginning, I have been striving to minimize the disruption to our children's lives. While some upheaval is inevitable, this situation resembles a traditional family separation, but with the added complication that the children have been separated from the parent they were accustomed to spending more time with. There is no justification for Heather's unilateral decision to significantly reduce the boys' time with the parent they were used to spending more time with, limiting it to only five nights per fortnight.

and as you know, there are other issues.

Nevertheless, given the tone from the OS, perhaps my case is best served to minimize our time this afternoon as much as possible. **Can we keep it to 30 mins?** Hopefully that leads to one counter-proposal from us to demonstrate a continued effort to "show" we are trying to mediate despite the injustice's endured above. **BTW, the boys have told me that Heather advised them I agreed to less time. Thankfully the boys believed me that this was not the case and while partially true, entirely out of context as to why that was necessary.**

Regarding my investment with respect to paying the invoice, please see attached correspondence.

Perhaps Matthew, in an effort to save time, I need to better understand why a further concession is required from me when Heather has not paid about 21k of funds by breaching interim orders and believes she is entitled to \$600k in cash (\$200k by way of interim property settlement, \$200k cash removed from mortgage, \$200k credit draw from marital home mortgage) when she only had a tax liability of about 180k? And, gets to retain the condo.

Regards,

Stephen

Follow me on LinkedIn: [www.linkedin.com/in/stephen-cooke-b853702ab]

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2 attachments



Investment Delayed 2024-07-30_11-47.png
85K



July 30 2024 Praemium Update.pdf
75K

Matthew Shepherd <mshepherd@ramsdenlaw.com.au>
To: Stephen Cooke <stephencooke.c@gmail.com>

Wed, Jul 31, 2024 at 3:10 AM

Dear Stephen

You do not have to make an offer now – or at all. The reason you might do so is if:

1. you wanted to try to settle the matter before the registrar's mediation
2. Settle before the other court dates
3. Avoid the need for the costs of the family report and the further court argument about who should pay
4. Avoid further costs
5. Avoid risks of doing worse from the court making the decisions.

If you do not wish to make any offers now, we do not have to conder this afternoon. Do you wish to talk at 5.30? Let me know. If we are not meeting, I will go home.

Regards,

MATTHEW SHEPHERD

Acc. Spec. (Family Law) NSW

D: (02) 8123 1229

E: mshepherd@ramsdenlaw.com.au

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PERSPECTIVET: 1300 749 709 | W: ramsdenfamilylaw.com.au

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BOOK A
MEDIATION WITH ME

[Quoted text hidden]

Stephen Cooke <stephencooke.c@gmail.com>
To: Matthew Shepherd <mshepherd@ramsdenlaw.com.au>

Wed, Jul 31, 2024 at 3:13 AM

Hi Matthew,

It's just, how are we addressing this disparity? Or is the suggestion to simply not to and let it go in an effort to avoid further costs.

Maybe we keep the call just so I can better understand.

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A SMARTER
PERSPECTIVE

image002.png
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Matthew Shepherd <mshepherd@ramsdenlaw.com.au>
To: Stephen Cooke <stephencooke.c@gmail.com>

Wed, Jul 31, 2024 at 3:29 AM

OK

Here is a link

Join the meeting now

Regards,

MATTHEW SHEPHERD

Acc. Spec. (Family Law) NSW

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E: mshepherd@ramsdenlaw.com.au



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BOOK A
MEDIATION WITH ME

From: Stephen Cooke <stephencooke.c@gmail.com>
Sent: Wednesday, July 31, 2024 5:14 PM
To: Matthew Shepherd <mshepherd@ramsdenlaw.com.au>

Subject: Re: FW: Urgent - Cooke & Cooke

Hi Matthew,

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Maybe we keep the call just so I can better understand.

On Wed, 31 July 2024, 5:10 pm Matthew Shepherd, <mshepherd@ramsdenlaw.com.au> wrote:

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Regards,

MATTHEW SHEPHERD

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From: Stephen Cooke <stephencooke.c@gmail.com>

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